



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11407
(FIRST REVISION)

401 Seventh Street, S.W.
Washington, D.C. 20590

MAR 31 1999

EXPIRATION DATE: March 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109.)

1. GRANTEE: International Safety Instruments, Inc.
Lawrenceville, GA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain non-DOT specification cylinders, to be used in underwater breathing apparatus, containing various Division 2.2 gases. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.302(a)(1), and 175.3.
5. BASIS. This exemption is based on International Safety Instruments, Incorporated application dated February 20, 1997, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Air, compressed	Division 2.2	UN1002	---
Mixtures containing helium and/or neon/Rare gases and oxygen mixtures	Division 2.2	UN1980	---
Mixtures containing helium and/or neon/Rare gases and nitrogen mixtures	Division 2.2	UN1981	---
Compressed gases, n.o.s.	Division 2.2	UN1956	---

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification, fiber reinforced plastic (FRP) hoop wrapped cylinder conforming with DOT-E 9894. The cylinder(s) are contained inside a waterproof pressurized protective housing in conformance with International Safety Instruments' drawing DRU3 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The housing will be equipped with a pressure control regulator to maintain the interior of the housing at a slightly higher gas pressure than the surrounding water pressure. The breathing apparatus housing must be totally leak-tight.

b. MARKING: The outside of each housing must be marked "DOT-E 11407". Additionally, DOT-E 11407 must be added to each cylinder manufactured under DOT-E 9894 used under this exemption.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. This exemption authorizes the use of DOT-E 9894 cylinders for underwater breathing purposes, only when used in compliance with all provisions of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo only aircraft, and passenger aircraft.10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

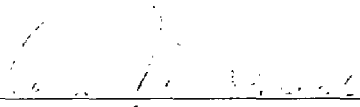
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

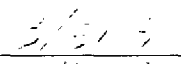
No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety



(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FRA, FAA, USCG